

National Guidance Act, 1961

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 4

National Directive Act, 2018

Royal Seal and Date of Publication

2018.9.13

Amending Acts

1. Act to Amend, Repeal and Reorganize Nepalese Acts and Keep Them in Force, 2019 2019.12.30
2. National Directive (Amendment) Act, 2021 2021.8.1
3. National Directive (Second Amendment) Act, 2024 2024.4.4

Certification and Date of Publication

2066.10.7

5. Act to Amend and Repeal Some Nepalese Laws, 2072 2072.6.14

Act No. 31 of the year 2018

An Act Made to Provide for the Power to Give National Directives

Preamble: Whereas, amended by the Act to Amend, Repeal and Reorganize Nepalese Acts and Keep Them in Force, 2019 it is expedient to provide for the power to give nationwide directives in order to maintain good relations among the people of different classes, professions or fields, and to uphold the good conduct, convenience, economic interest, decorum and morality of the general public, and to channel the power of class-based and professional organizations towards the construction and development of the nation as well as their own class-based and professional interests and development,

Therefore, His Majesty King Mahendra Bir Bikram Shah Deva has enacted this Act in accordance with Article 93 of the Constitution of Nepal amended by the Act to Amend, Repeal and Reorganize Nepalese Acts and Keep Them in Force, 2019. 1. Short Title, Extent and Commencement: (1) This Act may be called the "National Directive Act, 2018".

(2) This Act shall extend to the whole of Nepal deleted by the Act to Amend and Repeal Some Nepalese Laws, 2072

(3) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act, -

(a) "Class-based and professional organization" means a children's organization deleted by the Second Amendment a youth organization, a women's organization, a farmers' organization, a workers' organization, and other similar class-based and professional organizations established and operated with the primary objective of the interest and development of a particular class or profession as well as the construction and development work of the nation.

(b) "Constitution" means the constitution made for establishing, operating and carrying out other related activities of a class-based and professional organization specifying the primary objective, and also includes amendments thereto. 3.

Prior Approval of the Government of Nepal Required to Establish a Class-based and Professional Organization: (1) No person shall establish any class-based and professional organization without the prior approval of the Government of Nepal under this Act. (2) A person or persons desiring to establish a class-based and professional organization shall submit an application to the Government of Nepal, together with a copy of the constitution for establishing, operating and carrying out other related activities of such organization, specifying the primary objective as well. (3) After an application is submitted pursuant to subsection (2), the Government of Nepal may examine whether the class-based and professional organization under such application and the constitution submitted therewith is being established with the primary objective of the interest and development of a particular class or profession as well as the construction and development work of the nation, and if it appears necessary to make any amendment to the constitution for the fulfillment of that objective, may grant approval to establish, operate and carry out other related activities of the class-based and professional organization in accordance with such constitution, including such amendment. If it appears that it is not being established with the primary objective of the interest and development of a particular class or profession as well as the construction and development work of the nation, or if it appears that such organization would be detrimental to the national interest, the Government of Nepal may also reject such application without assigning any reason. (4) A constitution approved with or without amendment by the Government of Nepal under this section shall not be amended or repealed and another constitution implemented without the approval of the Government of Nepal. (5) The Government of Nepal may initiate the establishment, operation and other related activities of children's organizations deleted by the Second Amendment youth organizations, women's organizations, farmers' organizations, workers' organizations and ex-servicemen organizations. Such organizations shall also carry out their activities only in accordance with the constitution approved by the Government of Nepal. (6) If the Government of Nepal itself intends to establish or cause to be established a particular class-based and professional organization, or if the Government of Nepal has already recognized a particular class-based and professional organization as nationwide, the Government of Nepal shall not grant approval to establish more than one such organization of the same class or profession. Added by the National Directive (Amendment) Act, 2021.(7) Notwithstanding anything contained in this Act or in the constitutions of class-based and professional organizations, the Government of Nepal may, if it deems necessary, amend the constitution of a class-based and professional organization after consulting with the working committee of the concerned organization.

Added by the Second Amendment.(8) Notwithstanding anything contained in the foregoing subsections, if students of a university, college or any educational institution of a level prescribed by the Government of Nepal desire to open any association or institution for physical, intellectual and cultural development within such institution, they may do so with the approval of the Vice-Chancellor or Principal or Head Teacher. While granting approval to open such association or institution, the approving authority shall do so in accordance with the rules made under this Act. If any student of such educational institution opens or attempts to open any such association or institution without the approval of the Vice-Chancellor or Principal or Head Teacher, or does any act contrary to the above objectives or rules, such student may be expelled for a maximum period of two years by the Vice-Chancellor or Principal or Head Teacher of the concerned institution. A student expelled from any educational institution in such manner shall not be admitted for study or training in any educational institution of Nepal deleted by the Act to Amend and Repeal Some Nepalese Laws, 2072

during the period of expulsion. 4. Deleted by the Second Amendment

5. Power of the Government of Nepal to Issue National Directives: The Government of Nepal may, from time to time, issue to the various class-based and professional organizations and other organizations of Nepal deleted by the Act to Amend and Repeal Some Nepalese Laws, 2072 such directives as it deems necessary regarding their work and activities, having regard to the national interest, and it shall be the duty of the concerned organizations to comply with such directives. 5A. Delegation of Powers: The Government of Nepal may, by publishing a notice in the Nepal Gazette, delegate all or any of its powers and duties under this Act to any officer specified in that notice to exercise and perform them, and an order or directive given by such officer shall be deemed to have been given by the Government of Nepal. 6.

Penalties: (1) If any person or persons establish any class-based and professional organization without the approval of the Government of Nepal, each such person or persons shall be liable, by order of the Government of Nepal, to a fine of up to Nepalese Rupees 500/? or imprisonment for up to six months or both, and the organization so established shall also be illegal. (2) If any class-based and professional organization or other organization, or its committee or member, fails to comply with any directive given by the Government of Nepal under this Act or the rules made thereunder, or performs any act contrary to the constitution approved by the Government of Nepal, such organization, its committee or member may, depending on the circumstances, be fined up to Nepalese Rupees 500/? by order of the Government of Nepal, or suspended or dissolved for a period specified in that order. 7. Validation of Previous Activities: All acts and activities performed by the Government of Nepal in relation to class-based and professional organizations before the commencement of this Act, and such organizations established and operated with the approval of the Government of Nepal, shall be deemed to have been performed under this Act, and acts performed by such organizations that are not inconsistent with this Act shall also be deemed to have been performed under this Act. 8. No Question to be Raised in Court: Any order or directive given by the Government of Nepal under this Act or the rules made thereunder shall be final, and no question may be raised against it in any court. 9. Power to Make Rules: The Government of Nepal may, from time to time, make rules for the purpose of implementing the provisions of this Act, subject to no inconsistency with this Act. Such rules shall come into force only after publication in the Nepal Gazette. 10. Saving: Deleted by the Act to Amend, Repeal and Reorganize Nepalese Acts and Keep Them in Force, 2019